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CASE #	CASE NAME	HEARING NAME
CVRI2300147	MCCOY. VS FLEETWOOD ALUMINUM PRODUCTS, INC.	MOTION TO BIFURCATE ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$25,000) OF MARK MCCOY

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300147	MCCOY. VS FLEETWOOD ALUMINUM PRODUCTS, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$25,000) OF MARK MCCOY

Tentative Ruling: The Court GRANTS Defendant/Cross-Complainant Fleetwood Aluminum Product's Inc.'s Motion(s) for Summary Judgment.

This motion, which is really two motions—one for MSJ/MSA on Fleetwood's Cross-Complaint against Cross-Defendant Mark McCoy, and MSJ/MSA on McCoy's Cross-Complaint ("CC") against Fleetwood—is brought by Cross-Complainant/Cross-Defendant Fleetwood Aluminum Products, Inc. Fleetwood moves the court for summary judgment on its cross-complaint and alternatively for summary adjudication as to McCoy's affirmative defense based on the business judgment rule on the grounds there is no triable issue as to any material fact in light of the binding and preclusive findings established the final arbitration award issued in Mark McCoy v. Fleetwood Aluminum Products, Inc.

Fleetwood asserts that the issues in the arbitration are identical to the issues in Fleetwood's CC which were litigated and necessarily decided, which decision is final and on the merits. Fleetwood asserts that applying the binding findings, Fleetwood establishes breach of fiduciary duties as a matter of law as McCoy owed Fleetwood fiduciary duties as a director and officer and breached those duties by implementing the sham section 139 Plan and refusing to implement corrective steps. Further, Fleetwood asserts that McCoy's breach caused Fleetwood to suffer harm.

As to McCoy's CC, Fleetwood asserts that his claim for express indemnity fails as a matter of law as indemnification is barred because the arbitrator found McCoy engaged in bad faith and misconduct, McCoy cannot establish mandatory indemnification under section 317(d) and the Bylaws do not expand indemnification beyond section 317.